8601160297

AMENDMENT TO CONTRACT FOR MAINTENANCE AND OPERATION OF ON-SITE SEWERAGE SYSTEMS

THIS Amendment to Contract for Maintenance and Operation of On-Site Sewerage Systems is made and entered into this 16th day of January, 1986, by and between Heller Financial, Inc., a Delaware corporation, formerly known as Walter E. Heller & Company, and Springfield Waste Management Association, a Washington corporation.

W I T N E S S E T H:

WHEREAS, on the 18th day of October, 1985, the parties hereto entered into a Contract for Maintenance and Operation of On-Site Sewerage Systems affecting certain real property located in the County of Pierce, State of Washington; and

WHEREAS, the parties hereto desire by these presents to amend the legal description attached as Exhibit A to the Contract.

NOW, THEREFORE, for and in consideration of the mutual promises herein contained, the parties hereto agree as follows:

1. The legal description attached as Exhibit A to the contract is hereby amended by deleting the same in its entirety, and the legal description attached as Exhibit A to this Amendment is hereby substituted therefor.

2. The contract shall remain in full force and effect as therein stated except as herein amended and modified.

IN WITNESS WHEREOF, this Amendment to Contract for

Maintenance and Operation of On-Site Sewerage Systems has been executed the day and year first above written.

HELLER FINANCIAL, INC., a Delaware corporation

By _____
Paul C. Chapman, Vice President

SPRINGFIELD WASTE MANAGEMENT ASSOCIATION, a Washington non-profit corporation

By _____
Its _____

ACKNOWLEDGED BY AND CONSENTED TO:

Heath Investments, Inc., a Washington corporation

By _____
Richard Heath, President

STATE OF WASHINGTON)
) ss.
COUNTY OF KING)

On this 16th day of January, 1986, before me personally appeared Paul C. Chapman, to me known to be the Vice President of Heller Financial, Inc., the corporation that executed the within and foregoing instrument, and acknowledged the said instrument to be the free and voluntary act and deed of said corporation for the uses and purposes therein mentioned, and on oath stated that he was authorized to execute said instrument.

IN WITNESS WHEREOF, I have hereunto set my hand and affixed my official seal the day and year first above written.

_____
NOTARY PUBLIC in and for the State of Washington, residing at Bellevue

STATE OF WASHINGTON)
) ss.
COUNTY OF KING)

On this 16th day of January, 1986, before me personally appeared Paul A. Chapman, to me known to be the President of Springfield Waste Management Association, the corporation that executed the within and foregoing instrument, and acknowledged the said instrument to be the free and voluntary act and deed of said corporation for the uses and purposes therein mentioned, and on oath stated that he was authorized to execute said instrument.

IN WITNESS WHEREOF, I have hereunto set my hand and affixed my official seal the day and year first above written.

Sarah J Zink
NOTARY PUBLIC in and for the State of Washington, residing at Bellevue

STATE OF WASHINGTON)
) ss.
COUNTY OF PIERCE)

On this 16th day of January, 1986, before me personally appeared Richard Heath, to me known to be the President of Heath Investments, Inc., the corporation that executed the within and foregoing instrument, and acknowledged the said instrument to be the free and voluntary act and deed of said corporation for the uses and purposes therein mentioned, and on oath stated that he was authorized to execute said instrument.

IN WITNESS WHEREOF, I have hereunto set my hand and affixed my official seal the day and year first above written.

Sarah J Zink
NOTARY PUBLIC in and for the State of Washington, residing at Bellevue

EXHIBIT A

Lots 224 to 232, inclusive, 246 to 264, inclusive, 190, 191, 196 and 197, in SPRINGFIELD as per plat recorded under Auditor's File No. 8011260320, records of Pierce County.

Situate in the County of Pierce, State of Washington.

RECORDED
86 JAN 16 P 3:05
RICHARD A. GREEN AUDITOR
PIERCE COUNTY WASH
BY DEPUTY

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8601160298

AMENDMENT TO SUPPLEMENTAL DECLARATION
OF COVENANTS AND RESTRICTIONS
FOR AN ON-SITE SEWERAGE SYSTEM

The Supplemental Declaration of Covenants and Restrictions for an On-Site Sewerage System recorded under Auditor's File No. 8501180315, Records of Pierce County, Washington, is, pursuant to Article 4.1 of said Supplemental Declaration, hereby amended by the Declarant as follows:

I. The legal description attached as Exhibit A to the Supplemental Declaration is hereby amended by deleting the same in its entirety and the legal description attached as Exhibit A to this Amendment is substituted therefor.

II. All other provisions of the Supplemental Declaration of Covenants and Restrictions for an On-Site Sewerage System referred to above and as recorded under the above recited recording number shall remain in full force and effect except as herein modified and amended.

IN WITNESS WHEREOF, the undersigned have executed this instrument on the day and year first above written.

"DECLARANT"

HELLER FINANCIAL, INC., a
Delaware corporation, formerly
known as Walter E. Heller & Company

By _____
Paul C. Chapman, Vice President

ACKNOWLEDGED BY AND CONSENTED TO:

Heath Investments, Inc., a
Washington corporation

By _____
Richard Heath, President

RECORDED
86 JAN 16 P 3:06
RICHARD J. GREGG AUDITOR
PIERCE COUNTY WASH
DEPUTY

STATE OF WASHINGTON)
) ss.
COUNTY OF KING)

On this 16th day of January, 1986, before me personally appeared Paul C. Chapman, to me known to be the Vice President of HELLER FINANCIAL, INC., the corporation that executed the within and foregoing instrument, and acknowledged the said instrument to be the free and voluntary act and deed of said corporation for the uses and purposes therein mentioned, and on oath stated that he was authorized to execute said instrument.

IN WITNESS WHEREOF, I have hereunto set my hand and affixed my official seal the day and year first above written.

Sarah J. Zenk
NOTARY PUBLIC in and for the State of Washington, residing at Bellevue

STATE OF WASHINGTON)
) ss.
COUNTY OF PIERCE)

On this 16th day of January, 1986, before me personally appeared Richard Heath, to me known to be the President of HEATH INVESTMENTS, INC., the corporation that executed the within and foregoing instrument, and acknowledged the said instrument to be the free and voluntary act and deed of said corporation for the uses and purposes therein mentioned, and on oath stated that he was authorized to execute said instrument.

IN WITNESS WHEREOF, I have hereunto set my hand and affixed my official seal the day and year first above written.

Sarah J. Zenk
NOTARY PUBLIC in and for the State of Washington, residing at Bellevue

EXHIBIT A

Lots 224 to 232, inclusive, 246 to 264, inclusive, 190, 191, 196 and 197, in SPRINGFIELD as per plat recorded under Auditor's File No. 8011260320, records of Pierce County.

Situate in the County of Pierce, State of Washington.